



SPONSOR: Sen. Pinkney & Rep. Chukwuocha
Sens. Buckson, Hansen, Huxtable, Mantzavinos; Reps.
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DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 152

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO VOLUNTARY ADMISSIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 50, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 5003. Voluntary admission procedure.

(f) If any applicant is under the age of 18 years old, the following provisions shall apply:

(1) In the case of voluntary admission to a designated psychiatric treatment facility or hospital, consent to treatment ~~shall~~ may be given only by a parent, legal guardian, or, when the applicant is in DSCYF custody pursuant to Chapter 25 of Title 13, the Department's Director or Deputy Director of the Division of Family Services, or the Director's or Deputy Director's designee ~~when the applicant is in DSCYF custody pursuant to Chapter 25 of Title 13.~~ The request for admission to the designated psychiatric treatment facility or hospital ~~shall~~ must be signed by either the applicant's parent, legal guardian, or, when the applicant is in DSCYF custody pursuant to Chapter 25 of Title 13, the Department's Director or Deputy Director of the Division of Family Services, Services, or the Director's or Deputy Director's designee. ~~when the applicant is in DSCYF custody pursuant to Chapter 25 of Title 13.~~

(2) A voluntary patient or the voluntary patient's parent, legal guardian, or, when the applicant is in DSCYF custody pursuant to Chapter 25 of Title 13, the Department's Director or Deputy Director of the Division of Family Services, or the Director's or Deputy Director's Designee, ~~when the applicant is in DSCYF custody pursuant to Chapter 25 of Title 13~~ may make a written request to the attending psychiatrist to be discharged at any time.

a. The provisions of subsection (e) of this section shall apply in such instances, except that the voluntary patient's discharge may be conditioned upon the consent of the voluntary patient's parent, legal guardian, or, when the applicant is in DSCYF custody pursuant to Chapter 25 of Title 13, the Department's Director or Deputy Director of the Division of Family Services, or the Director's or Deputy Director's designee ~~when the applicant is in DSCYF custody pursuant to Chapter 25 of Title 13.~~

24 b. If the voluntary patient's parent, legal guardian, or, when the applicant is in DSCYF custody
25 pursuant to Chapter 25 of Title 13, or the Department's Director or Deputy Director of the Division of
26 Family Services, or the Director's or Deputy Director's designee, when the voluntary patient is in
27 DSCYF custody pursuant to Chapter 25 of Title 13 requests the patient's discharge from a treatment
28 facility against the advice of the treatment team and administrator of the facility, the facility may initiate
29 involuntary treatment procedures as provided for under this chapter. The provisions of this paragraph
30 shall apply as if the patient had made the request.

SYNOPSIS

This Act adds that the Director or Deputy Director of the Division of Family Services may have a designee consent to voluntary admission and sign for admission to a psychiatric hospital for youth in DFS custody. This reflects best practices and matches the current process for surgical consents for youth in DFS custody, and under DFS policy, a designee may only act as a designee to take such action with the direct approval of the Director or Deputy Director.

Author: Senator Pinkney